

Santosh Kumar Yadav v. State of U.P. through M.D., U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 21 December 2012 · WRIT - C No. - 67373 of 2012 · **Writ dismissed as misconceived; apply under clauses 4.3–4.9.**

HEADNOTE

A tenant's writ seeking installation of a new electricity connection, without first applying under clauses 4.3 to 4.9 of the U.P. Electricity Supply Code, 2005 (particulars including premises dues and owner/landlord consent), is misconceived and liable to be dismissed. If an application is thereafter made in accordance with the Code, it is to be considered expeditiously.

FACTUAL SUMMARY

Santosh Kumar Yadav, tenant of a first-floor shop in house No. C.K.13/9, Mohalla Satti Chaura, Ward Chowk City, Varanasi, filed a writ petition seeking installation of a new electricity connection in the tenanted premises. Counsel for the distribution licensee submitted that the petitioner had not applied for a new connection as required by paragraphs 4.3 to 4.9 of the U.P. Electricity Supply Code, 2005, including particulars of any premises dues and the consent of the owner or landlord.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3

new connection application before writ

HOLDING

A writ seeking a direction to install a new electricity connection, without first making an application in accordance with clauses 4.3 to 4.9 of the U.P. Electricity Supply Code, 2005—which require particulars including payment of any dues of the connection in the premises and the consent of the owner/landlord—is misconceived and liable to be dismissed. If the consumer thereafter applies in accordance with the Code, the application is to be considered expeditiously. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE TENANT'S CLAIM TO A NEW CONNECTION, INCLUDING PREMISES DUES AND LANDLORD CONSENT

Writ dismissed as misconceived for want of an application under clauses 4.3 to 4.9; any later application left to be considered in accordance with the Code. ¶ 1